

Tentative Rulings for July 20, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2104070	868 ANDREAS CANYON DR., LLC VS PINKERTON	MOTION TO ENFORCE SETTLEMENT AGREEMENT AND RELEASE BY 868 ANDREAS CANYON DR., LLC, 868 A CANYON, LLC

Tentative Ruling: Code of Civil Procedure section 664.6 provides: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., §664.6.) The court’s decision to adopt a settlement as a judgment under section 664.6 is not mandatory as the statute states that a court “may enter judgment pursuant to the terms of the settlement...” (*In re Jason E.* (1997) 53 Cal.App.4th 1540, 1546.) Although a motion for enforcement of a settlement filed under section 664.6 is not an exclusive means to enforce an agreement, section 664.6 provides for an expeditious procedure intended to “benefit not only parties but also the justice system, relieving it of the burden of more time consuming and expensive processes. [Citation.]” (*In re Marriage of Woolsey* (2013) 220 Cal.App.4th 881, 898.)

“A trial court, when ruling on a section 664.6 motion, acts as a trier of fact.” (*Skulnick v. Roberts Express, Inc.* (1992) 2 Cal.App.4th 884, 889.) The court “acting upon a motion under section 664.6 may determine the motion upon declarations alone” or, in the trial judge’s sound discretion, may receive oral testimony in making a determination on the motion. (*Ibid.*; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565.)

Here, Plaintiff has not demonstrated that a fully executed settlement agreement exists. A copy of the finalized version of the settlement agreement, which all parties have purportedly agreed to, was not placed into evidence before the court. Although it is true “the lack of a party’s signature does not make a fully executed contract unenforceable,” the moving party must demonstrate that a binding settlement agreement was entered by all parties agreeing to its material terms. (*Performance Plastering v. Richmond American Homes of California, Inc.* (2007) 153 Cal.App.4th 659.) Although there seems to be no dispute over the material terms or the parties’ respective obligations under the settlement agreement, Plaintiff has not shown that the obligations for payment have yet been triggered.

Additionally, counsel for Cross-Defendant Vantage Plaster and Drywall, Inc. indicated that the settlement check had been delivered to Plaintiff’s counsel on 6.19.26. (Vantage Opposition 2:20-24.) Counsel for Cross-Defendant Kermit Larby Air Conditioning and Sheet Metal, Inc. anticipated that their settlement funds would be issued by July 10, 2026. It is not known at this time if that has been completed. (Kermit Opposition 2:23-24.) Counsel for Cross-Defendant Desert Mirage Pools and Spas stated they were awaiting the signatures of Defendants No Fault and Milo Pinkerton for Desert’s insurer to issue payment and after having received them, payment should be made prior to the hearing date of July 20, 2026. (Desert Opposition 2:13-25.) Lastly, Defendants Pinkerton and No Fault LLC were dismissed by Plaintiff on 7.10.26.

Motion to Enforce Settlement Agreement is DENIED.

OSC re dismissal after conditional settlement continued to 12.21.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503648	GAMBOA COVARRUBIAS VS LEWIS	MOTION TO STRIKE ANSWER ON COMPLAINT FOR OTHER REAL PROPERTY (OVER \$35,000) OF GUILLERMO GAMBOA COVARRUBIAS AS TO ARIES LEWIS, LETICIA GRANO

Tentative Ruling: No tentative ruling. The hearing is continued to 8.12.26 to be heard with the other Motion to Strike.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2601626	MARASHI VS U.S. BANK TRUST NATIONAL ASSOCIATION, AS TRUSTEE FOR THE LBRANCH SERIES V TRUST OWNER	DEMURRER ON 1ST AMENDED COMPLAINT FOR WRONGFUL EVICTION OF KAYVON MARASHI BY U.S. BANK TRUST NATIONAL ASSOCIATION, AS TRUSTEE FOR THE LBRANCH SERIES V TRUST OWNER, RYJEN GROUP INC, REO REALTY OF CALIFORNIA INC, JULIE RENEE BRUCKNER

Tentative Ruling:

No opposition submitted.

Demurrer as to the 1st, 3rd, and 4th Causes of Action SUSTAINED, with leave to amend. Plaintiff to file amended complaint within 15 days.

Case Management Conference confirmed for 9.10.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2601626	MARASHI VS U.S. BANK TRUST NATIONAL ASSOCIATION, AS TRUSTEE FOR THE LBRANCH SERIES V TRUST OWNER	MOTION TO STRIKE 1ST AMENDED COMPLAINT FOR WRONGFUL EVICTION OF KAYVON MARASHI BY U.S. BANK TRUST NATIONAL ASSOCIATION, AS TRUSTEE FOR THE LBRANCH SERIES V TRUST OWNER, RYJEN GROUP INC, REO REALTY OF CALIFORNIA INC, JULIE RENEE BRUCKNER

Tentative Ruling:

Motion to Strike 1st Amended Complaint is MOOT based upon the court's ruling on the Demurrer.